

26STCV06855 26STCV06855

County: los-angeles

Division: Civil Law and Motion

Department: 414

Hearing date: 2026-07-21

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C414%2C07%2F21%2F2026

Source SHA-256: 43a09e68747b9cfd41b152fa602922c55e9c071776516a17c433a424e9ac252d

Case Number: 26STCV06855 Hearing Date: July 21, 2026 Dept: 414

26STCV06855

Frank Galindo v. PS2, Inc.

Tuesday,

July 21, 2026

[TENTATIVE] ORDER GRANTING MOTION TO COMPEL
ARBITRATION (7055)

I.

BACKGROUND

This

is a wage and hour action alleging violations of the Labor Code including retaliation and for violation of the California Private Attorneys General Act. Defendant moves to compel arbitration of all disputes based on an agreement requiring arbitration of the individual claims alleged.

II.

LEGAL

STANDARDS

The court can order the parties to

arbitrate the matter on petition of a party to an arbitration agreement. (Code Civ. Proc., § 1281.2). The petitioner's burden is to establish

that a valid arbitration agreement exists. The opposing party's burden is to

establish a defense to enforcement based on a preponderance of evidence. (Molecular Analytical Systems v. Ciphergen Biosystems, Inc. (2010) 186 Cal.App.4th 696, 705.)

Courts apply state law to determine who is bound by an arbitration agreement and who may enforce it. (Thomas v. Westlake (2012) 204 Cal.App.4th 605, 614, fn. 7);

Rosenthal

v. Great Western Fin. Securities Corp. (1996)

14 Cal.4th 394, 410

["Because the California procedure for deciding motions to compel [arbitration] serves to further, rather than defeat, full and uniform effectuation of the federal law's objectives, the California law, rather than section 4 of the USAA, is to be followed in California courts."].)

Under Section 2 of the FAA, written

arbitration agreements are valid, irrevocable, and enforceable "save upon such grounds as exist at law or in equity for the revocation of a contract." (Arthur

Andersen LLP v. Carlisle (2009)

556 U.S. 624, 629–630; 9 U.S.C.A. § 2.) Section 3 of the FAA requires the court to stay the action if it involves issues referable to arbitration. (9 U.S.C.A. § 3.)

III.

DISCUSSION

A.

Defendant

has met its burden of showing the existence of an arbitration agreement.

Defendant need only show the existence

of an agreement by a preponderance of evidence. (Espejo

v. Southern California Permanente Medical Group (2016) 246 Cal.App.4th 1047, 1058 ["as a preliminary matter the [trial] court is only required to make a finding of the agreement's existence, not an evidentiary determination of its validity."].)

The moving party need only attach a copy of the agreement to the

petition and incorporate it by reference. (Id. at 1058; Cal. Rules of Court, rule 3.1330 ["The provisions must be stated verbatim or

a copy must be physically or electronically attached to the petition and incorporated by reference."].)

Plaintiff signed an arbitration agreement

and printed his name. (Schmit Decl., Ex. 1.) Therein, Plaintiff consented to binding arbitration of a broad scope of employment disputes:

"In order to gain the benefits of a speedy, impartial, and cost-effective resolution procedure, PS2 Inc. and I consent to binding arbitration to resolve all claims arising out of my employment and/or termination of my employment or which a court would otherwise be authorized to grant relief, including but not limited to contract, tort, statutory, and common law claims By doing so, the Company and I each knowingly and voluntarily waive rights to a trial before a jury. ...

"I have carefully read this agreement and have entered into it voluntarily and not in reliance on any promises or representations by the Company other than those contained in this agreement itself." (Id.)

B.

Plaintiff

has not established any defenses to enforcement

Plaintiff

disputes signing the agreement and contends the agreement is not authenticated.

(Opp. 2:6.) Plaintiff does not cite any

relevant authority; Espejo is contrary to this contention. (Espejo, supra.) Defendant's reply brief cites Condee v. Longwood Management Corp. (2001)

88 Cal.App.4th 215, 218–219 which

held that "for purposes of a petition to compel arbitration, it is not necessary to follow the normal procedures of document authentication. '[T]he court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists....' (View more Negative Treatments§ 1281.2) The statute does not require the petitioner to introduce the agreement into evidence. A plain reading of the statute indicates that as a preliminary matter the court is only required to make a finding of the agreement's existence, not an evidentiary determination of its validity." (Id.)

Plaintiff

submits his own and others' declarations stating that he did print out his name on the arbitration agreement but is "100% certain" that he did not sign it.

(Galindo decl., ¶ 9.) Plaintiff argues the court should not consider any new evidence submitted with the reply. However, Plaintiff's deposition testimony rebuts Plaintiff's contention that the signature is not authentic. (Los

Angeles Unified School Dist. v. Torres Construction Corp. (2020) 57 Cal.App.5th 480, 499 ["Evidence which is used to fill gaps in the original evidence created by the opposition is particularly appropriate to consider in a reply."] Moreover, the reply evidence consists of Plaintiff's deposition testimony under penalty of perjury. The reply and evidence in support was served on Plaintiff, giving Plaintiff notice and opportunity to respond further at the hearing. (Jay v. Mahaffey (2013) 218 Cal.App.4th 1522, 1538.)

Peter

Michael Schmit, Plaintiff's president, asserts that he personally meets with all applicants and recalls meeting with Plaintiff. He confirms Plaintiff signed the agreement on November 20, 2017. (Schmit decl., ¶ 6). Moreover, Defendant took Plaintiff's deposition on June 18 and June 24, 2026 (Kowarski reply decl., ¶ 3-5.) Plaintiff admitted printing his name on the agreement and affixing his initials at the bottom right corner of the agreement while also denying that the signature on the agreement was his. (Reply decl., Ex. 42:24-43:7.)

The

meaning and effect of a contract is a matter of interpretation by the court, applying state law principles of interpretation. (Citizens Utilities Co. v. Wheeler (1957) 156 Cal.App.2d 423, 432; Basura v. U.S. Home Corp. (2002) 98 Cal.App.4th 1205, 1215 ["On the threshold issue of whether the parties agreed to arbitrate a matter, courts apply ordinary state law principles that govern the formation of contracts, which principles are not preempted by the FAA."].)

The

burden of authenticating a signature is "not great." (Ruiz v. Moss Bros. Auto Group, Inc. (2014) 232 Cal.App.4th 836, 844.) In Ruiz, Plaintiff disputed the authenticity of the electronic signature attributed to him. Ruiz held that an electronic signature is attributable to a person if it is the act of the person, and this may be shown in any manner" even by circumstantial evidence. (Id.) The manner of authentication is not limited by the Evidence Code. (Id. citing Evidence Code § 1400 ["Authentication of a writing means (a) the introduction of evidence sufficient to sustain a finding that it is the writing that the

proponent of the evidence claims it is or (b) the establishment of such facts by any other means provided by law."].)

Defendant's case authority that a signature alone is not required for proof of acceptance as "signing" may come in many forms, is persuasive. Defendant cites Donovan

v. RRL Corp. (2001) 26

Cal.4th 261, 277 which

determined that authentication under the Commercial Code includes any "symbol executed or adopted by a party with present intention to authenticate a writing." (Id. ["Authentication may be printed, stamped, or written; it may be by initials or by thumbprint. It may be on any part of the document and in appropriate cases may be found in a billhead or letterhead. No catalog of possible authentications can be complete, and the court must use common sense and commercial experience in passing upon these matters. The question always is whether the symbol was executed or adopted by the party with present intention to authenticate the writing."])

IV.

CONCLUSION

Defendant

has met its burden by a preponderance of evidence that Plaintiff agreed to arbitrate all disputes arising from his employment. Accordingly, the motion is GRANTED.